

**IN THE UNITED STATES DISTRICT COURT
FOR THE SOUTHERN DISTRICT OF TEXAS
GALVESTON DIVISION**

DONALD LYNN THOMPSON, JR.,

Plaintiff,

v.

MATAGORDA COUNTY, et al.,

Defendants.

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Civil Action No.: 3:25-CV-00253

MATAGORDA COUNTY DEFENDANTS' MOTION TO DISMISS

The Matagorda County Defendants¹ move to dismiss Plaintiff's Original Complaint pursuant to Federal Rule of Civil Procedure 12(b)(6).

I. INTRODUCTION

Plaintiff Donald Lynn Thompson, Jr. ("Plaintiff" or "Thompson") alleges civil rights violations in this suit against Matagorda County and various county officials. Specifically, Plaintiff contends that he was improperly arrested by Deputy Raymond Gonzales for driving with an expired registration and detained for 18 hours. Pl.'s Original Pet. ¶¶ 19–20. Plaintiff then claims that Magistrate Judge Jason Sanders impermissibly entered a disposition of "time served" without properly advising Plaintiff of his rights. *Id.* ¶¶ 21–22. Finally, Plaintiff alleges that his civil rights were violated in the vehicle tow hearing. He claims that Judge Mark Finlay erroneously denied his request for certain video evidence to be produced, that County Attorney Jennifer Chau objected to certain lines of questioning, and that Records Clerk Michaela Riley imposed administrative

¹ Matagorda County, Texas; Jennifer Chau, the Matagorda County Attorney; Judge Jason Sanders, Justice of the Peace Precinct 1; Judge Mark Finlay, Justice of the Peace Precinct 4; Raymond Gonzales, Matagorda County Sheriff's Deputy; unknown John and Jane Does alleged to be employed by the Matagorda County Sheriff's Department; Michaela Riley, alleged to be a Records Clerk with the Matagorda County Sheriff's Office; the Matagorda County Sheriff's Department; and the Matagorda County Attorney's Office.

barriers to accessing the evidence despite his indigency. *Id.* ¶¶ 23–29. Plaintiff brings suit under 42 U.S.C. §§ 1983, 1985(3), and 1986 against Matagorda County and various county officers. He requests \$3.2 million in damages.

Plaintiff's claims suffer from a host of legal deficiencies and should be dismissed for a number of reasons:

- 1) Plaintiff fails to state a claim under Section 1983 as a matter of law because an officer may legally arrest an individual for driving with an expired car registration.
- 2) Matagorda County's judges, prosecutor, officers, and record clerks are entitled to immunity, and Plaintiff has not identified a valid waiver of that immunity.
- 3) Plaintiff fails to state a claim for malicious prosecution because there was probable cause to initiate the prosecution.
- 4) Plaintiff fails to state a claim for conspiracy under 42 U.S.C. §§ 1985(3) and 1986 because there was no underlying deprivation of constitutional rights and because Plaintiff provides no evidence of a "meeting of the minds."
- 5) Plaintiff fails to allege a pattern or practice sufficient to establish *Monell* liability.

The Matagorda County Defendants respectfully request that the Court dismiss Plaintiff's claims in their entirety.

II. LEGAL STANDARD

Pursuant to Fed. R. Civ. P. 12(b)(6), a claim may be dismissed because of a "failure to state a claim upon which relief can be granted." A complaint must contain a "short and plain statement of the claim showing that the pleader is entitled to relief" to give the defendant "fair notice" of what the claims are and the grounds upon which they rest. *See* Fed. R. Civ. P. 8(a)(2); *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 555 (2007). "A plaintiff's obligation to provide the 'grounds' of his 'entitlement to relief' requires more than labels and conclusions, and a formulaic recitation of the elements of a cause of action will not do" *Id.* at 555 (internal citations omitted). Legal conclusions "must be supported by factual allegations." *Ashcroft v. Iqbal*, 556 U.S. 662, 679

(2009). To survive a motion to dismiss, a complaint must contain sufficient factual allegations, accepted as true, “to state a claim to relief that is plausible on its face.” *Id.* at 678 (quoting *Twombly*, 550 U.S. at 570). “Where a complaint pleads facts that are ‘merely consistent with’ a defendant’s liability, it ‘stops short of the line between possibility and plausibility of ‘entitlement to relief.’” *Id.* (quoting *Twombly*, 550 U.S. at 557). Conclusory allegations shall not be accepted as true. *Kaiser Aluminum & Chem. Sales, Inc. v. Avondale Shipyards, Inc.*, 677 F.2d 1045, 1050 (5th Cir. 1982).

III. ARGUMENT AND AUTHORITIES

A. Plaintiff fails to state a claim under Section 1983 as a matter of law because an officer may legally arrest an individual for driving with an expired car registration.

Plaintiff’s Complaint hinges on his assertion that he was impermissibly arrested for driving with an expired registration. However, this assertion is unsubstantiated by law. A person may legally be arrested for driving with an expired registration. *See, e.g., Jaycox v. Pyle*, No. 6:18-CV-00016, 2021 WL 1140865 (S.D. Tex. Mar. 25, 2021) (“The failure to display proper vehicle registration through a valid registration sticker and two proper license plates are lawful grounds for arrest under Texas law.”) (citing Tex. Transp. Code Ann. § 502.473); *Hodnett v. State*, No. 05-01-01323-CR, 2002 WL 31845821 (Tex. App.—Dallas Dec. 20, 2002, pet. ref’d) (“Having an expired registration sticker is a traffic offense. When an officer has probable cause to believe a person is committing an offense, even a traffic offense, an officer can reasonably arrest that person.”); *Dominguez-Ramil v. State*, No. 14-22-00648-CR, 2024 WL 118488 (Tex. App.—Houston [14th Dist.] Jan. 11, 2024, no pet.) (noting that the officer “had probable cause to arrest appellant for expired registration and failure to carry liability insurance...”); *Blake v. State*, No. 14-00-01373-CR, 2002 WL 517174 (Tex. App.—Houston [14th Dist.] Apr. 4, 2002, no pet.)

(noting that the officer had probable cause to arrest the appellant when the expired registration was confirmed).

Plaintiff does not allege that he was not driving with an expired registration; instead, he attacks the legality of the arrest. He states that “[u]nder Texas Transportation Code § 543.003, the offense of expired registration is a Class C misdemeanor that does not authorize custodial arrest. The statute requires that the officer issue a citation and release the individual upon a written promise to appear.” Pl.’s Original Pet. ¶ 19. However, this is an incorrect recitation of the statute. Section 543.003 states the procedure for when an officer *arrests* a person for a violation and does not take a person before a magistrate. *See* Tex. Transp. Code § 543.003. Indeed, in the very section that Plaintiff cites, the statute acknowledges that an officer may make an arrest under this subtitle. Because Plaintiff’s arrest was lawful, Plaintiff fails to state a claim for the deprivation of his civil rights; any claims based on the illegality of his arrest should be dismissed.

Similarly, Plaintiff asserts that certain individuals barred access to body camera and dash camera footage. These claims should likewise be dismissed. Even if Plaintiff was erroneously prohibited from accessing this evidence, it would not have aided in his defense because the officer’s actions, as pled by Plaintiff, were legal.

B. Matagorda County’s judges, prosecutor, and officers are immune from suit and liability.

When a government employee is sued in his official capacity, and the government entity employer is also named as a defendant, “[t]he official-capacity claims and the claims against the governmental entity essentially merge.” *Turney v. Houma Mun. Fire & Police Civil Serv. Bd.*, 229 F.3d 478, 485 (5th Cir. 2000). Courts thus typically dismiss official-capacity claims against government employees in a case where the government-entity employer is also sued. *See, e.g. U.S. ex rel Bias v. Tangipahoa Par. Sch. Bd.*, 816 F.3d 315, 322 (5th Cir. 2016).

For the reasons above, Plaintiff's claims against the County (and, therefore, the official capacity claims against various individuals) should be dismissed. Plaintiff fails to allege any facts regarding what any County employee did in their *individual*, as opposed to official capacity, justifying an individual-capacity claim against any County employee. For the reasons below, the claims against the individual employees should be dismissed as well.

1. *Plaintiff's claims against Judges Jason Sanders and Mark Finlay are barred by judicial immunity.*

Judges Sanders and Finlay are entitled to absolute immunity for their judicial conduct. Judges have absolute immunity for judicial acts performed in judicial proceedings. *Mays v. Sudderth*, 97 F.3d 107, 110 (5th Cir. 1996). "A judge will not be deprived of immunity because the action he took was in error, was done maliciously, or was in excess of his authority; rather, he will be subject to liability only when he has acted in the 'clear absence of all jurisdiction.'" *Stump v. Sparkman*, 435 U.S. 349, 356–57 (1978); *see also Burns v. Reed*, 500 U.S. 478, 479 (1991) ("[A]bsolute immunity is designed to free the *judicial process*, rather than every litigation-inducing conduct, from harassment and intimidation."). Even in suits brought under Section 1983, absolute immunity applies when judges take judicial actions within their jurisdiction. *Mays v. Sudderth*, 97 F.3d 107, 111 (5th Cir. 1996). To overcome the presumption of judicial immunity, the plaintiff must show that the judge's actions are nonjudicial or are taken "in the complete absence of all jurisdiction." *Harry v. Lauderdale Cnty.*, 212 Fed. Appx. 344, 347 (5th Cir. 2007). Judicial acts are "normally performed by a judge" and affect parties who "dealt with the judge in his judicial capacity." *Id.*

Here, Judges Sanders and Finlay were performing judicial acts within their jurisdiction. Plaintiff objects to Judge Sanders' "conduct[ing] a magistration" and "enter[ing] a disposition of 'time served'". Pl.'s Original Pet. ¶ 21. However, these actions are inherently judicial acts that are

normally performed by a judge and that affect parties who deal with the judge in his judicial capacity. Judge Sanders, a magistrate judge, had the authority to hear the evidence against Plaintiff, issue an order of commitment, and enter a judgment of conviction.

Likewise, Judge Finlay's actions were judicial in nature. Plaintiff complains about the way in which Judge Finlay conducted the hearing, ruled on evidence, and decided motions. Pl.'s Original Pet. ¶ 23–27. These actions, too, are inherently performed by a judge in his judicial capacity. Although Plaintiff contends that the judges' conduct "was performed in a[]... non-judicial capacity," it is clear that hearing evidence, making evidentiary rulings, and making legal rulings are judicial acts. *See id.* p. 23. Judicial immunity is not waived simply because one party disapproves of the way in which judicial proceedings are conducted. Because Judges Sanders and Finlay took judicial actions within their jurisdiction, they are entitled to absolute immunity.

2. Plaintiff's claims against Matagorda County Attorney Jennifer Chau are barred by prosecutorial immunity.

Attorney Jennifer Chau is immune from suit under the doctrine of prosecutorial immunity. Prosecutors have absolute immunity from liability when performing prosecutorial functions. *Charleston v. Pate*, 194 S.W.3d 89 (Tex. App.—Texarkana 2006, no pet.); *see Imbler v. Pachtman*, 424 U.S. 409, 416 (1976) (noting that prosecutors are immune from liability for "acts done as part of their traditional official functions").

Here, Plaintiff complains that Ms. Chau made certain legal arguments and relied on certain testimony at his hearing. These are clearly acts done as part of the prosecutor's traditional official functions and not, as Plaintiff contends, merely "administrative" or "investigative." *See* Pl.'s Original Pet. p. 23. Additionally, Plaintiff complains that Ms. Chau improperly withheld video evidence from him. However, even presuming that this video evidence was improperly withheld and would have shown what Plaintiff alleged, the video evidence would not have been exculpatory

because the deputy's actions, as pled by Plaintiff, were legal. *See supra* Part III.A. Because Plaintiff complains of actions undertaken in furtherance of her role as a prosecutor, Ms. Chau is entitled to prosecutorial immunity.

3. *Plaintiff's claims against Deputy Raymond Gonzales and Records Clerk Michaela Riley are barred by qualified immunity.*

Plaintiff also brings claims against various state officials in their individual capacities. However, these claims fail because the officials are entitled to qualified immunity. *Thomas v. State*, 294 F. Supp. 3d 576, 606 (N.D. Tex. 2018), report and recommendation adopted, No. 3:17-CV-0348-N-BH, 2018 WL 1254926 (N.D. Tex. Mar. 12, 2018) ("A governmental employee who is sued under § 1983 or § 1985 may assert the affirmative defense of qualified immunity."). Qualified immunity protects state officials from personal suits when the officials act in their official capacities as long as their conduct "does not violate clearly established statutory or constitutional rights of which a reasonable person would have known." *Stidham v. Tex. Comm'n on Private Sec.*, 418 F.3d 486, 490 (5th Cir. 2005). After qualified immunity is invoked, the plaintiff bears the burden to show that qualified immunity is not an applicable defense. *Thomas*, 294 F. Supp. at 606. To do so, the plaintiff must allege facts showing that 1) a defendant violated his constitutional rights and 2) that the violation was objectively unreasonable. *Id.*

Here, Plaintiff concedes that all officers were acting as officials, agents, or employees of Matagorda County. Pl.'s Original Pet. ¶ 31. The officials were therefore acting in their official capacities, and qualified immunity is implicated. Plaintiff also does not and cannot allege that any Matagorda County official violated his constitutional rights in an objectively unreasonable manner.

First, Plaintiff brings suit against Deputy Raymond Gonzales for unlawful arrest. However, Deputy Gonzales's alleged conduct does not violate clearly established constitutional rights. An officer is entitled to arrest an individual for displaying an expired car registration. *See supra* Part

III.A. Thus, qualified immunity applies, and Plaintiff's claim of unlawful arrest and detention against Deputy Gonzales should be dismissed.

Second, Plaintiff sues Records Clerk Michaela Riley for deprivation of civil process and Brady violations. Specifically, Plaintiff alleges that Ms. Riley denied Plaintiff's request for access to body camera and dash camera footage, refusing to waive court fees despite Plaintiff's indignancy and citing vague "technical issues." Even taking Plaintiff's allegations as true, Ms. Riley's actions constituted harmless error. Plaintiff contends that the body camera and dash camera footage would have shown that Deputy Gonzales arrested Plaintiff for having an expired registration. See Pl.'s Original Pet. ¶ 20. These actions are not illegal; thus, even if the footage was produced to Plaintiff and showed what he purported it to show, the footage would not have aided Plaintiff's case.

Finally, Plaintiff brings claims against Deputy Gonzales and Ms. Riley for civil conspiracy to violate constitutional rights. However, Plaintiff cannot allege facts showing that the officers violated his constitutional rights, nor that they did so in an objectively unreasonable manner. A conspiracy requires an agreement between at least two parties. See *Duke Energy Intern., L.L.C. v. Napoli*, 748 F. Supp. 2d 656, 675 (S.D. Tex. 2010) (noting that a conspiracy requires a "meeting of minds on the object or course of action"). Plaintiff presents no evidence of any agreement, express or implied, between the Defendants to deprive Plaintiff of his constitutional rights. See Pl.'s Original Pet. ¶ 62. Because Plaintiff cannot allege facts showing that a defendant violated his constitutional rights and that the violation was objectively unreasonable, Matagorda County officials are entitled to qualified immunity.

C. The Matagorda County Sheriff's Department and Matagorda County Attorney's Office have no separate capacity to sue or be sued.

Neither the County Attorney's Office nor the Sheriff's Department are entities with a capacity to be sued separate and apart from the State or the County, and Plaintiff's claims against the County Attorney's Office and the Sheriff's Department should therefore be dismissed.

The capacity of a governmental entity to sue or be sued "shall be determined by the law of the state in which the district court is held." Fed. R. Civ. P. 17(b)(3). Here, the laws of the State of Texas apply. Unless the State of Texas or an authorized political subdivision (such as, in this case, Matagorda County) have "taken explicit steps to grant the servient agency with jural authority, the agency cannot engage in any litigation except in concert with the government itself." *Darby v. Pasadena Police Dep't.*, 939 F.2d 311, 313 (5th Cir. 1991).

Plaintiff alleges no facts to indicate that Matagorda County has authorized either the County Attorney's Office or the Sheriff's Department to engage in separate litigation. In *Darby v. Pasadena Police Dep't.*, confronted with similarly insufficient pleadings, the Fifth Circuit held that the district court properly dismissed a claim against the Pasadena Police Department because the police department was a non-jural entity that was not capable of being sued. *Darby v. Pasadena Police Dep't.*, 939 F.2d 311, 312 (5th Cir. 1991). And in *Barrie v. Nueces County District Attorney's Office*, the Fifth Circuit came to the same conclusion about a claim against the Nueces County District Attorney's Office, holding that because the district attorney's office was a non-jural entity that was not capable of being sued, the district court properly dismissed the claim against the district attorney's office. *Barrie v. Nueces County District Attorney's Office*, 753 Fed. App'x 260, 262 (5th Cir. 2018).

As in those cases, Plaintiff alleges no facts indicating that Matagorda County or the State of Texas has granted the County Attorney's Office or the Sheriff's Department a legal capacity to

sue and be sued. Accordingly, Plaintiff's claims against the County Attorney's Office and Sheriff's Department must be dismissed for failure to state a claim upon which relief can be granted.

D. Plaintiff fails to state a claim for malicious prosecution because the County had probable cause to initiate the prosecution.

Plaintiff's third cause of action, his claim for malicious prosecution, fails because he cannot successfully allege that the County lacked probable cause to initiate the prosecution. To successfully prove malicious prosecution, the Plaintiff must show (1) a criminal prosecution was commenced against him; (2) the criminal prosecution was initiated or procured by the defending party; (3) the prosecution was terminated in the complaining party's favor; (4) the complaining party was innocent; (5) the defending party lacked probable cause to initiate the prosecution; (6) the defending party acted with malice; and (7) the complaining party suffered damages. *Fishman v. C.O.D. Capital Corp.*, No. 05-16-00581-CV, 2017 WL 3033314 (Tex. App.—Dallas July 18, 2017, no pet.) (emphasis in original).

On its face, Plaintiff's pleadings fail to allege that the County lacked probable cause to initiate the prosecution. Plaintiff incorrectly argues that an individual cannot be arrested for an expired vehicle registration. Numerous court opinions establish that an expired vehicle registration is an arrestable offense. *See supra* Part III.A. Therefore, Plaintiff cannot prove an essential element of his case, and his claim of malicious prosecution should be dismissed.

E. Plaintiff fails to state a claim under 42 U.S.C. §§ 1985(3) and 1986 because there is no evidence of conspiracy.

Plaintiff also brings claims under 42 U.S.C. §§ 1985(3) and 1986, which pertain to conspiracy. However, Plaintiff fails to state a claim as a matter of law under these statutes for two reasons. First, Plaintiff cannot prove an actual deprivation of a constitutional right. Second, Plaintiff fails to present evidence of any "meeting of the minds" between two or more parties.

To bring a valid Section 1983 claim, “it remains necessary to prove an actual deprivation of a constitutional right; a conspiracy to deprive is insufficient.” *Villanueva v. McInnis*, 723 F.2d 414, 418 (5th Cir. 1984). Here, Plaintiff cannot show that he was actually deprived of a constitutional right; his arrest was constitutional. *See supra* Part III.A. Plaintiff’s conspiracy claims therefore fail because Plaintiff cannot show an underlying constitutional deprivation.

Additionally, Plaintiff’s conspiracy claims fail because he does not present evidence of an agreement between two or more parties. A claim for civil conspiracy requires 1) a combination of two or more persons; 2) an unlawful object to be accomplished; 3) *a meeting of the minds on the object or course of action*; 4) one or more unlawful, overt acts; and 5) damages. *Duke Energy Intern., L.L.C. v. Napoli*, 748 F. Supp. 2d 656, 675 (S.D. Tex. 2010) (emphasis in original). As mentioned above, Plaintiff cannot show any unlawful, overt acts. However, his claim also fails because he cannot show a meeting of the minds. A meeting of the minds only occurs if there is a “preconceived plan and unity of design and purpose.” *In re Enron Corp. Sec., Derivative & ERISA Litig.*, 623 F. Supp. 2d 798, 809 (S.D. Tex. 2009).

Here, Plaintiff does not plead facts demonstrating a preconceived plan to deprive Plaintiff of his civil rights. Plaintiff contends that the Defendants “knowingly and intentionally” entered into an agreement to deprive him of his constitutional rights. Pl.’s Original Pet. ¶ 62. However, mere allegations will not suffice. A conspiracy does not exist simply because a deputy makes an arrest, a prosecutor tries the case, and a judge makes a ruling. Plaintiff does not allege any facts suggesting that an agreement existed between the Defendants; therefore, his claims of conspiracy should be dismissed.

F. Plaintiff fails to allege a pattern and practice sufficient for *Monell*.

Finally, Plaintiff brings suit against Matagorda County for maintaining official policies, customs, or de facto practices that underlie the alleged constitutional violations. His complaint exclusively concerns the isolated conduct of a single arrest in a single case. However, municipal liability requires three elements: “a policymaker; an official policy; and a violation of constitutional rights whose ‘moving force’ is the policy or custom.” *Piotrowski v. City of Houston*, 237 F.3d 567, 578 (5th Cir. 2001) (citing *Monell v. Dep’t of Soc. Servs.*, 436 U.S. 658 (1978)). A written or formally adopted policy is not necessarily required, because municipalities may also be liable “where the constitutional deprivation is pursuant to a governmental custom, even if such custom has not received formal approval.” *Zarnow v. City of Wichita Falls, Tex.*, 614 F.3d 161, 166 (5th Cir. 2010) (quotations omitted).

In order to demonstrate the existence of a pattern or practice rising to the level of a custom, a single instance of conduct is insufficient to satisfy *Monell*. *City of Oklahoma City v. Tuttle*, 471 U.S. 808, 823-24 (1985). In fact, “it is nearly impossible to impute lax disciplinary policy to [a municipal government] without showing a pattern of abuses that transcends the error made in a single case.” *Piotrowski*, 237 F.3d at 582. Therefore, alleging a “pattern of abuses” as required for *Monell* requires similarity and specificity, as “[p]rior indications cannot simply be for any and all ‘bad’ or unwise acts, but rather must point to the specific violation in question.” *Est. of Davis ex rel. McCully v. City of N. Richland Hills*, 406 F.3d 375, 383 (5th Cir. 2005).

Courts in this circuit consistently require more than what Plaintiff alleges here to sustain a claim for relief. Showing a “pattern of abuses that transcends the error made in a single case,” *Piotrowski*, 237 F.3d at 582, requires at least a listing of similar prior incidents with some degree of detail greater than Plaintiff’s conclusory and cursory allusion to a number of other detainees that have filed grievances and other unidentified lawsuits. See, e.g., *DeLeon v. Nueces Cnty., Tex.*,

No. 2:21-CV-00143, 2022 WL 18232727, at *3 (S.D. Tex. June 2, 2022) (dismissing complaint for simply reciting “prior incidents of similar conduct without context,” thereby failing to sufficiently allege a pattern or practice by the municipality); *Huff v. Refugio County Sheriff’s Dept.*, No. 6:13-CV-00032, 2013 WL 5574901, at *5 (S.D. Tex. Oct. 9, 2013) (dismissing claims for excessive force and failure to supervise for lack of allegations concerning any other incident of improper County action); *Allen v. Burnett*, 2013 WL 2151218, at *3 (N.D. Tex. May 17, 2013) (dismissing plaintiff’s excessive force claim for alleging only one improper police action, committed against him, in support of pattern and practice claim); *compare with, e.g., Oporto v. City of El Paso*, No. EP-10-CV-110-KC, 2010 WL 3503457, at *5 (W.D. Tex. Sept. 2, 2010) (plaintiff stated a claim by alleging thirty-two prior incidents, spanning fifteen years, involving substantially similar events, and described in varying degrees of detail from “virtually no detail” to “significant detail”).

Plaintiff does not specifically list or identify any alleged incidents in which similarly situated individuals complained of a Matagorda County official’s conduct in conducting an arrest for an expired registration—a practice which courts have consistently held to be legal. Plaintiff’s failure to allege any prior incidents with any specificity, context, detail, or identifying information of any kind does not adequately allege a widespread county pattern or custom of excessive force. Nor does Plaintiff identify or allege any County policymaker who was the moving force behind his arrest (an alleged “violation” which, as explained above, was no violation at all). Because no *Monell* element is satisfied, Plaintiff’s claims against the Matagorda County Defendants should be dismissed.

IV. CONCLUSION

Fundamentally, Plaintiff sues a number of County employees and the County itself for arresting and prosecuting him. His complaint suffers from a myriad of legal deficiencies. Contrary

to Plaintiff's allegations, an officer may properly arrest an individual for driving with an expired car registration. Applying the appropriate legal rule, the foundation of Plaintiff's complaint crumbles; Plaintiff was not deprived of his constitutional rights, but instead was lawfully arrested. Additionally, the judges, prosecutor, and officials are entitled to immunity for their actions in Plaintiff's arrest and his subsequent hearings. Because this arrest was lawful, Plaintiff's claim of malicious prosecution fails, as the prosecution had probable cause to initiate the case. Plaintiff also fails to allege facts sufficient to show a "meeting of the minds," as required for a civil conspiracy. Finally, Plaintiff does not allege a pattern or practice sufficient for *Monell* liability.

For all these reasons, Plaintiff fails to state any claim upon which relief can be granted. The Matagorda County Defendants respectfully request the Court enter an order dismissing all of Plaintiff's claims against all Defendants with prejudice, and grant all other relief to which Matagorda County may be entitled.

Dated January 29, 2026

Respectfully submitted,

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**ATTORNEYS FOR MATAGORDA
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CERTIFICATE OF SERVICE

The undersigned hereby certifies that a copy of the foregoing was electronically served on all parties having appeared in this matter via the CM/ECF Filing system and by certified mail, return receipt requested, to Donald Lynn Thompson, Jr., P.O. Box 521, Markham, TX 77456, and by email at ginnyleethompson430@gmail.com, on January 29, 2026.

/s/ Ben Stephens

Ben Stephens